

ASBESTOS EXCLUSION CLAUSE

In respect of risks incepting on or after "Missing":

Any Liability Policy or liabilities section of a Policy protected hereunder is deemed to be subject to an Asbestos Exclusion Clause, being the applicable Asbestos Exclusion Clause contained in the Policy under consideration.

In the event that a Liability Policy or liabilities section of a Policy does not contain such an exclusion then the following Asbestos Exclusion Clause will be deemed to apply to that Liability Policy or to the liability section of that particular Policy:

"This policy does not cover any claims of any kind whatsoever directly or indirectly relating to, arising out of or in consequence of:

1. the actual, alleged or threatened presence of asbestos in any form whatsoever, or any material or product containing, or alleged to contain, asbestos; or
2. any obligation, request, demand, order, or statutory or regulatory requirement that any Insured or others test for, monitor, clean up, remove, contain, treat, neutralize, protect against or in any other way respond to the actual, alleged or threatened presence of asbestos or any material or product containing, or alleged to contain, asbestos.

However, this exclusion shall not apply to any claim caused by or resulting in a crash fire explosion or collision or a recorded in-flight emergency causing abnormal aircraft operation.

Notwithstanding any other provisions of this policy, Insurers will have no duty to investigate, defend or pay defence costs in respect of any claim excluded in whole or in part under paragraphs 1 or 2 hereof.

ALL OTHER TERMS AND CONDITIONS OF THE POLICY REMAIN UNCHANGED."

08/05
LSW1570